Precedent memo: Tarrow Freight v. Delling

Multnomah County Circuit Court, trial ruling 2024-03-11 - memo by the employment group

1. Holding

The court refused to enforce a 24-month non-compete against a freight dispatcher because the employer never gave written notice of the non-compete two weeks before the start date, as ORS 653.295 requires.

2. Facts

Delling accepted an offer by email on 2022-12-27 and started on 2023-01-16. The offer email mentioned the non-compete; the signed agreement arrived on the first day.

3. Firm position

We represented Delling and argued the notice defect alone. Lesson: ask the client for the dated offer letter first.

4. Scope analysis (not reached)

Had the court reached scope, the 24-month term and the three-state radius would likely have been narrowed to 12 months.

5. Damages

Tarrow claimed 180,000 dollars in lost contracts. The court did not reach damages.

6. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.

Addendum, 2025-06-02

Reversed on appeal (Oregon Court of Appeals, A181442). The appellate court held that the offer email of 2022-12-27, 20 days before the start date, was written notice. Section 1 above is no longer good law and must not be cited.